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IN THE SUPREME COURT OF THE STATE OF IDAHO

STATE OF IDAHO,	)	
	)	**NOS. 44003 & 44004**
Plaintiff-Respondent,	)	
	)	**CANYON COUNTY**
v.	)	**NOS. CR 2015-9861 & CR 2015-9825**
	)	
BENJAMIN J. DAHL AKA: BENJAMIN JOHN DAHL,	)	
	)	
Defendant-Appellant.	)	
	)	

BRIEF OF APPELLANT

APPEAL FROM THE DISTRICT COURT OF THE THIRD JUDICIAL DISTRICT OF THE STATE OF IDAHO, IN AND FOR THE COUNTY OF CANYON

HONORABLE THOMAS J. RYAN
District Judge

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STATEMENT OF THE CASE

Nature of the Case

Benjamin J. Dahl appeals from his judgment of conviction for possession of a controlled substance with intent to deliver and possession of a controlled substance, challenging the district court's denial of his motion to suppress. He contends the district court erred in denying his motion to suppress because the officers who entered his family's home at the invitation of his eight-year-old sister would not have discovered contraband in his bedroom but for the illegal entry, and the State did not meet its burden of establishing that the arguably valid consent given for the search of his bedroom by Mr. Dahl and/or his mother was sufficiently attenuated from the illegal entry to expunge the taint of the unlawful police conduct.

Statement of the Facts and Course of Proceedings

At approximately 8:36 a.m. on May 23, 2015, Officers Hoeksema and Hemmert knocked on the front door of Mr. Dahl's residence looking for an individual, James David, for whom they had a felony warrant. (Conf. Exs., pp.23, 26.) In his police report, Officer Hoeksema stated he made contact with Mr. Dahl's mother and was invited into the residence.[1] (Conf. Exs., p.23; 9/8/15 Tr., p.14, Ls.12-21.) The audio recording of the encounter reflects otherwise.[2] After almost three minutes of intermittent knocking,

[1] Officer Hemmert's police report likewise states, "Hoeksema made contact with an adult who lived at the above residence and was granted entry." (Conf. Exs., p.26.)

[2] The Clerk's Record does not contain a copy of the audio recording of the incident, which was admitted into evidence at the suppression hearing by stipulation of the parties. (*See* 9/8/15 Tr., p.2, Ls.4-13.) Simultaneously with the filing of this brief, Mr. Dahl is filling a motion to augment the record to include a copy of this audio recording. *See* Mot. to Aug., Ex. A.

Mr. Dahl's eight-year-old sister answered the front door. (Mot. to Aug., Ex. A, at 00:08-02:48.) The following exchange took place between Officer Hoeksema and the young girl:

Officer: Hi. How are you?

Child: Good.

Officer: Hey, is, uh, James here?

Child: Who?

Officer: James. You know, James David. I was over here the other day and he was here. Is Ben here?

Child: I don't know.

Officer: Can you go look for me?

(Mot. to Aug., Ex. A, at 02:48-03:02.) There was more knocking and the young girl opened the door again after almost two minutes. (Mot. to Aug., Ex. A, at 04:46.) The following exchange then took place:

Child: I think he's still sleeping.

Officer: Okay. Is your parents up?

Child: [no audible response]

Officer: Can you open the door for officer safety reasons?

Child: Yeah.

Officer B: We just need to talk to one adult who [inaudible].

Officer: Can you got get one of your parents for me please?

Child: Yeah.

Officer: May I come in?

Child: Yeah.

Officer: Okay.

(Mot. to Aug., Ex. A, at 04:46-05:04.) Once inside the residence, Officer Hoeksema asked the young girl to get one of her parents or Ben. (Mot. to Aug., Ex. A, at 06:05-06:08.) Almost a minute and a half later, Mr. Dahl's mother appeared in her bathrobe or nightgown. (9/8/15 Tr., p.9, Ls.12-15.) Officer Hoeksema apologized to Mr. Dahl's mother for waking her. (Mot. to Aug., Ex. A, at 07:23-07:26.) He then asked her if James was there, and she responded, "No, he doesn't come by very often." (Mot. to Aug., Ex. A, at 07:38-07:43.) Officer Hoeksema asked if she knew where James might be and she answered, "No, I don't." (Mot. to Aug., Ex. A, at 07:44-07:46.) Officer Hoeksema asked, "Do you mind if we go up to make sure he's not here?" and she responded, "Yeah." (Mot. to Aug., Ex. A, at 08:02-08:07.)

At that point, Officer Hoeksema and Mr. Dahl's mother went upstairs to Mr. Dahl's bedroom. They knocked on the door, and Mr. Dahl's mother said, "Ben, the police would like to see your room please." (Mot. to Aug., Ex. A, at 08:18-08:20.) Mr. Dahl opened the door, wearing his boxers and a t-shirt, and Officer Hoeksema "assum[ed] that he was probably asleep." (9/8/15 Tr., p.11, Ls.10-18.) The following exchange then took place:

Officer: How are you today?

Mr. Dahl: [no audible answer]

Officer: Nobody's in trouble. We're just looking for a guy that used to stay here.

Officer: [inaudible]

Mrs. Dahl: They just want to make sure James isn't here.

(Mot. to Aug., Ex. A, at 08:20-08:42.) Officer Hoeksema said he "need[ed] to find James" and said, "So if he's in there, I need you to send him out." (Mot. to Aug., Ex. A, at 09:00-09:06.) Mr. Dahl's mother told the officer her son was coming—"[i]t just takes him a minute to get up." (Mot. to Aug., Ex. A, at 09:14-09:17.) Mr. Dahl opened his bedroom door, and the following exchange took place:

Q: Hey Ben, how are you?

A: Good. How about you?

Q: Not too bad. Hey man, I'm here for James. So where's he at?

A: James is not here.

Q: Okay. Do you mind if I look?

A: [inaudible response]

Q: Appreciate it. Who else is in here with you?

A: Just my boy.

Q: Where did you see James last?

A: Um, yesterday in the van.

Q: In a van?

A: Yes, sir.

Q: Can I move past you real quick? I just want to check that real fast.

A: [no audible response]

(Mot. to Aug., Ex. A, at 09:20-09:50.) At the suppression hearing, Officer Hoeksema testified that when he asked Mr. Dahl if he could search his room, "I believe he shook his head and motioned for me to walk inside." (9/8/15 Tr., p.18, Ls.9-22.) Officer Hoeksema then searched Mr. Dahl's closet, observed drug paraphernalia, and asked

Mr. Dahl, "What do you got in there?" (Mot. to Aug., Ex. A, at 10:00-10:01; Conf. Exs., p.23.) Officer Hoeksema located additional contraband, informed Mr. Dahl of his rights pursuant to *Miranda v. Arizona*, 384 U.S. 436 (1966), and arrested him. (Mot. to Aug., Ex. A, at 11:12-11:25; Conf. Exs., p.27.)

Mr. Dahl was charged by Information in CR-2015-9861 with possession of a controlled substance with intent to deliver and three counts of possession of a controlled substance (heroin, hydrocodone and oxycodone). (R., pp.28-30.) Mr. Dahl filed a motion to suppress, arguing the officers violated his rights under the Fourth Amendment of the United States Constitution when they entered his home without a search warrant and without valid consent. (R., pp.33-42.) The district court held a hearing, at which Officer Hoeksema testified. (9/8/15 Tr., pp.5-19.) Following the hearing, Mr. Dahl filed a notice of supplemental authority and the Sate filed an objection to the same. (R., pp.56-58, 61-63.)

The district court denied Mr. Dahl's motion to suppress. (R., pp.64-75.) The district court first concluded that the 8-year-old girl who allowed Officer Hoeksema to enter the home could not validly consent to the entry. (R., pp.68-72.) The district court next concluded that Mr. Dahl failed to meet his burden of showing the drugs would not have been discovered but for the illegal entry because "the evidence establishes the two other valid consents [given by Mr. Dahl's mother and Mr. Dahl] independently justified the initial warrantless search [of Mr. Dahl's bedroom]." (R., p.74.) In reaching this conclusion, the district court found the evidence implied both Mr. Dahl and his mother consented to the search of Mr. Dahl's bedroom "by gesture." (R., p.72.)

Following the denial of his motion to suppress, Mr. Dahl entered into an agreement with the State pursuant to which he pled guilty to possession of a controlled substance with intent to deliver and one count of possession of a controlled substance, reserving his right to appeal the denial of his motion to suppress, and the State dismissed the remaining charges. (R., pp.84-87, 99-100.) On Count I, the district court sentenced Mr. Dahl to a unified term of eight years, with two years fixed. (R., p.129.) On Count II, the district court sentenced Mr. Dahl to a unified term of five years, with two years fixed, to be served concurrently. (R., p.130.) The district court suspended the sentence and placed Mr. Dahl on probation for a period of four years. (R., p.130.) The judgment was entered on February 25, 2016, and Mr. Dahl filed a timely notice of appeal on February 29, 2016.[3] (R., pp.129-32, 133-36.)

[3] This appeal was consolidated with the appeal in CR-2015-9825 by order of this Court. (R., p.143.) In CR-2015-9825, Mr. Dahl was charged with using or possessing drug paraphernalia with intent to use, which charge was dismissed by the State on February 18, 2016. (R., p.10.) Because the charges were dismissed, Mr. Dahl does not raise an issue in this appeal with respect to CR-2015-9825.

ISSUES

Did the district court err in denying Mr. Dahl's motion to suppress?

ARGUMENT

The District Court Erred In Denying Mr. Dahl's Motion To Suppress

A. Introduction

In its memorandum decision denying Mr. Dahl's motion to suppress, the district court correctly concluded that Officer Hoeksema violated Mr. Dahl's rights under the Fourth Amendment of the United States Constitution when he entered Mr. Dahl's home without a warrant because it was not reasonable for him to believe the eight-year-old girl who gave him permission to enter the home had actual authority to grant such permission. (R., pp.68-72.) The district court nonetheless denied Mr. Dahl's motion because it concluded the search of Mr. Dahl's bedroom was lawful based on consent given by Mr. Dahl and/or his mother. (R., pp.72-74.) This was an error. The search of Mr. Dahl's bedroom would not have occurred but for the officer's illegal entry and the State did not meet its burden of establishing the consent given by Mr. Dahl and/or his mother was sufficiently attenuated from the illegal entry to expunge the taint of the unlawful police conduct. Moreover, even if the consent was sufficiently attenuated from the illegal entry, the State did not meet its burden of establishing by a preponderance of the evidence the validity of that consent.

B. Standard Of Review

"In reviewing a district court order granting or denying a motion to suppress evidence, the standard of review is bifurcated." *State v. Purdum*, 147 Idaho 206, 207 (2009) (citation omitted). "This Court will accept the trial court's findings of fact unless they are clearly erroneous. However, this Court may freely review the trial court's

application of constitutional principles in light of the facts found." *Id.* (citations omitted). "At a suppression hearing, the power to assess the credibility of witnesses, resolve factual conflicts, weigh evidence, and draw factual inferences is vested in the trial court." *State v. Aguirre*, 141 Idaho 560, 562 (Ct. App. 2005) (citations omitted).

C. The Evidence Discovered In Mr. Dahl's Room Should Have Been Suppressed Because Mr. Dahl Established That His Room Would Not Have Been Searched But For The Officer's Illegal Entry Into His Home And The State Did Not Meet Its Burden Of Establishing The Consent Given By Mr. Dahl And/Or His Mother Was Sufficiently Attenuated From The Illegal Entry To Expunge The Taint Of The Unlawful Police Conduct

> Where a defendant has moved to suppress evidence allegedly gained through unconstitutional police conduct, the state bears the ultimate burden of persuasion to prove that the challenged evidence is untainted, but the defendant bears an initial burden of going forward with evidence to show a factual nexus between the illegality and the state's acquisition of the evidence.

State v. Kapelle, 158 Idaho 121, 127 (Ct. App. 2014). The defendant must make a prima facie showing that the evidence sought to be suppressed would not have come to light but for the government's unconstitutional conduct. *See id.* "[T]he defendant need only show that, on the events that did take place, the discovery of the evidence was a product or result of the unlawful police conduct." *Id.* (citation omitted).

Here, the district court held Mr. Dahl did not meet his initial burden of showing the evidence found in his room would not have been discovered but for Officer Hoeksema's illegal entry into his home. (R., pp.72-74.) The district court erred. Officer Hoeksema would not have been able to search Mr. Dahl's room (with or without consent) if he had not been present in his home, and he would not have been present but for the illegal entry. There is a factual nexus between the illegal entry and the discovery of evidence in Mr. Dahl's room because Mr. Dahl's room would not, and could

not, have been searched if the officer was not present in his house. The evidence at the hearing established that Mr. Dahl and his mother were asleep when the officers knocked on the front door, and there is nothing to suggest the officers would have gained entry into Mr. Dahl's home absent the supposed "consent" of Mr. Dahl's eight-year-old sister. Mr. Dahl met his initial burden of showing that the evidence discovered in his room would not have been found but for the illegal entry.

When a defendant meets his initial burden of showing a factual nexus between the illegal conduct of the police and the acquisition of evidence, the question then becomes, under the attenuation doctrine, whether the police acquired the evidence by exploiting the illegality or by means sufficiently distinguishable to be purged of the primary taint. *See Wong Sun v. United States*, 371 U.S. 471, 488 (1963); *State v. Bigham*, 141 Idaho 732, 734 (Ct. App. 2005); *see also Kapelle*, 158 Idaho at 128. Our Supreme Court has considered three factors in determining whether unlawful police conduct has been adequately attenuated: "(1) the elapsed time between the misconduct and the acquisition of the evidence, (2) the occurrence of intervening circumstances, and (3) the flagrancy and purpose of the improper law enforcement action." *State v. Page*, 140 Idaho 841, 846 (2004) (citation omitted). Considering these factors here, the State did not meet its burden of establishing the consent given by Mr. Dahl and/or his mother was sufficiently attenuated from the illegal entry to expunge the taint of the unlawful police conduct.

First, very little time elapsed between Officer Hoeksema's illegal entry into Mr. Dahl's home and the search of Mr. Dahl's bedroom. Officer Hoeksema entered Mr. Dahl's home at approximately 8:41 a.m., and entered Mr. Dahl's bedroom

approximately five minutes later. (Mot. to Aug., Ex., A, at 05:04, 09:50.) Officer Hoeksema remained inside Mr. Dahl's residence the entire time. His illegal act of entering the home was ongoing and never ended. Second, the intervening circumstance of the consent to the search of Mr. Dahl's bedroom was irrevocably intertwined with the illegal entry. Officer Hoeksema awoke Mr. Dahl and his mother and showed up, illegally, inside their home, asking for consent to search for someone who was not there. Even if freely given, consent to search will not expunge the taint of unlawful police conduct where the events are irrevocably intertwined. *See State v. Kerley,* 134 Idaho 870, 874 (Ct. App. 2000). Such is the case here. Third, Officer Hoeksema's violation of Mr. Dahl's Fourth Amendment rights was flagrant. He knew the eight-year-old girl could not lawfully allow him to enter the home, and attempted to cover up his actions in his police report by saying he was granted entry into the home by Mr. Dahl's mother. (Conf. Exs., p.23.)

This case is analogous to *State v. Hudson*, 147 Idaho 335 (Ct. App. 2009). In *Hudson*, a police officer unlawfully entered the defendant's motel room when he stopped the door from closing with his foot and then pushed it open so he could continue to observe the defendant. *Id.* at 337. The officer had asked to enter the room and the defendant had refused. *Id.* After a second officer arrived, the defendant allowed him to enter the room and eventually consented to the search of his room, which led to the discovery of marijuana. *Id.* The first officer testified at the suppression hearing that the whole encounter took between three and five minutes. *Id.* at 338. The Court held the unlawful search of the defendant's hotel room never ended because the defendant was never allowed to restore his privacy by closing the door. *Id.* "[B]ecause

the unlawful intrusion was ongoing, the search and subsequent acquisition of the incriminating evidence was contemporaneous and irrevocably intertwined with the misconduct." *Id.* The Court held the defendant's consent to the second officer's entry was not an intervening circumstance which would justify the intrusion because it "was tainted by the unlawful activity and was rendered invalid." *Id.* The Court thus held the evidence found in the motel room must be suppressed. *Id.*

Similarly here, the unlawful entry into Mr. Dahl's house never ended and, even if otherwise valid, the consent given by Mr. Dahl and his mother to the search of Mr. Dahl's bedroom was tainted by the unlawful activity and could not lawfully permit the subsequent intrusion. On the evidence presented at the suppression hearing, the State did not meet its burden of establishing the search of Mr. Dahl's bedroom was purged of the primary taint of the illegal entry into his home. The district court thus erred in denying Mr. Dahl's motion to suppress.

D. Even If The Consent Given By Mr. Dahl And/Or His Mother Was Sufficiently Attenuated From The Illegal Entry, The State Did Not Meet Its Burden Of Establishing By A Preponderance Of The Evidence The Validity Of That Consent

"The state bears the burden of proving that consent was fully and voluntarily given." *State v. Zapp*, 108 Idaho 723, 726 (Ct. App. 1985). Whether consent was fully and voluntarily given is viewed in light of the totality of circumstances. *Id.* Here, the State did not meet its burden of establishing by a preponderance of the evidence the validity of that consent.

With respect to Mr. Dahl, it appears from the record that, at most, Mr. Dahl acquiesced to the search of his bedroom, but did not voluntarily consent to it. The audio recording of the incident reflects that Officer Hoeksema asked Mr. Dahl, "Do you mind if

I look [for James]?" and Mr. Dahl did not provide an audible response. (Mot. to Aug., Ex. A, at 9:20-9:50.) The officer testified at the suppression hearing that he "believe[d] [Mr. Dahl] shook his head and motioned for me to walk inside." (9/8/15 Tr., p.18, Ls.9-22.) The Court of Appeals has noted "a slight gesture such as a shrug of the shoulders or a minimal affirmative gesture, may indicate mere acquiescence rather than consent." *State v. Jaborra*, 143 Idaho 94, 98 (Ct. App. 2006). That is especially true where, as here, the atmosphere was coercive. *See Zapp*, 108 Idaho at 726 (holding that, in a coercive atmosphere, "mere acquiescence, such as a shrug of the shoulders or a minimal affirmative gesture, does not constitute consent under the fourth amendment"). The atmosphere in which Mr. Dahl allegedly consented to the search of his bedroom was coercive considering the time of day—early in the morning—and the fact Mr. Dahl was in his bedroom, asleep, until his mother and Officer Hoeksema knocked on his door, looking for someone who was not there.

With respect to Mrs. Dahl, the State did not meet its burden of showing she had actual or apparent authority to consent to a search of her 25-year-old son's bedroom. (Conf. Exs., p.1.) The State did not introduce any evidence to show she had access to her son's bedroom, customarily entered it when he was not present, or kept personal belongings in the room. *See State v. Fancher*, 145 Idaho 832, 838 (Ct. App. 2008). And the State did not introduce any evidence to show the officers reasonably believed Mrs. Dahl had apparent authority to consent to a search of Mr. Dahl's bedroom. *See id.* at 839. Moreover, the atmosphere in which Mrs. Dahl consented to the search of her son's bedroom was coercive due to the time of day and the fact that Mrs. Dahl was woken up to respond to an officer who was already present, illegally, in her home.

Without legitimate consent from Mr. Dahl and/or Mrs. Dahl to search Mr. Dahl's bedroom, the search of the bedroom was unlawful even apart from the officer's illegal entry into Mr. Dahl's home, and violated his rights under the Fourth Amendment.

CONCLUSION

Mr. Dahl respectfully requests that this Court vacate his conviction, reverse the district court's order denying his motion to suppress, and remand this case to the district court for further proceedings.

DATED this 4th day of October, 2016.

_____/s/_____
ANDREA W. REYNOLDS
Deputy State Appellate Public Defender

CERTIFICATE OF MAILING

I HEREBY CERTIFY that on this 4th day of October, 2016, I served a true and correct copy of the foregoing APPELLANT'S BRIEF, by causing to be placed a copy thereof in the U.S. Mail, addressed to:

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THOMAS J RYAN
DISTRICT COURT JUDGE
E-MAILED BRIEF

KENNETH K JORGENSEN
DEPUTY ATTORNEY GENERAL
CRIMINAL DIVISION
E-MAILED BRIEF

_____/s/_____
EVAN A. SMITH
Administrative Assistant

AWR/eas